

Applicable Law Acts

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User Query :

I signed up for an online shopping application and provided my name, phone number, delivery address and purchase information for placing orders. I later started receiving targeted calls and messages from unrelated financial and insurance companies that appeared to know details about my purchases. The shopping platform says that customer information may have been shared with marketing partners, but I do not remember giving clear consent for this use. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 15/Combined Act

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NyaySahayak

AI-Powered Legal Intelligence Platform

INFORMATION TECHNOLOGY (IT) ACT, 2000

APPLICABLE SECTIONS

Section 72A

— Punishment for disclosure of information in breach of lawful contract

Potentially relevant if the platform/service provider obtained the personal information under a lawful contract and disclosed it without consent/in breach of contract with the intent or knowledge required by **section 72A**.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1** **Section 72A** is conditional, not automatic. A statutory-powers confidentiality provision or negligent-security provision is not the natural fit where the allegation is ordinary third-party marketing disclosure rather than access under statutory powers or a security failure.

✓ STRENGTHS & RIGHTS

- 1** The scenario expressly describes possible third-party marketing disclosure outside the remembered order-fulfilment purpose.

✗ RISKS & OBLIGATIONS

- 1** Do not infer negligent-security liability merely because personal data was shared.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

- 1.** Preserve the privacy notice, consent screen, terms in force at signup and communications from marketing partners.

BHARATIYA NYAYA SANHITA (BNS), 2023

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1
- The stated facts are principally about data processing/sharing. No clear BNS offence is established without additional deceptive, threatening, extortionate or forged conduct.

✓ STRENGTHS & RIGHTS

- 1
- Avoids turning a consent/privacy dispute into an unsupported criminal charge.

✗ RISKS & OBLIGATIONS

- 1
- Additional facts could change the result.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1.
- Keep the BNS result as no direct provision on present facts.

BHARATIYA SAKSHYA ADHINIYAM (BSA), 2023

APPLICABLE SECTIONS

Section 61 — Electronic or digital record

Privacy notices, consent logs and marketing communications may be electronic records.

Section 62 — Special provisions as to evidence relating to electronic record

Electronic contents are proved under **section 63** .

Section 63 — Special provisions relating to electronic records

Relevant if those records are used in a proceeding.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

- 1 BSA is evidentiary only; it may govern proof of what notice/consent was actually presented and what disclosures occurred.

✓ STRENGTHS & RIGHTS

- 1 Consent logs and historical privacy-policy versions can be important evidence.

✗ RISKS & OBLIGATIONS

- 1 BSA does not create the underlying data-processing obligation.

PROCEDURAL NOTES & COMPLIANCE STEPS*Actionable steps for compliance and grievance redressal***COMPLIANCE STEPS**

1. Preserve screenshots plus server/account records where obtainable.

DIGITAL PERSONAL DATA PROTECTION ACT (DPDP), 2023

APPLICABLE SECTIONS

Section 4 — Grounds for processing personal data

Processing requires a lawful basis under the Act.

Section 5 — Notice

Notice must describe the personal data and purpose of processing.

Section 6 (1) — Consent

Consent must be free, specific, informed, unconditional and unambiguous and for the specified purpose.

Section 6 (4)-(6) — Withdrawal of consent and cessation of processing

Relevant if the user withdraws consent; cessation is subject to statutory exceptions.

Section 11 — Right to access information about personal data

May support obtaining information about processing and sharing.

Section 13 — Right of grievance redressal

Provides a grievance route against the Data Fiduciary/Consent Manager.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The central issue is purpose/consent: data supplied for shopping/order fulfilment appears to have been shared for unrelated marketing without clear consent. Sections 4-6 are therefore the main doctrinal provisions, with sections 11 and 13 supporting transparency/grievance rights.

✓ STRENGTHS & RIGHTS

1 The scenario directly contrasts the stated shopping purpose with later targeted third-party marketing.

✗ RISKS & OBLIGATIONS

1 Do not overstate the present enforceability of these duties before their notified commencement date.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Current-law caveat (29 Aug 2026): the key substantive private-sector DPDP duties relevant to these scenarios are scheduled to commence on 13 May 2027 under the 13 Nov 2025 commencement notification. Until then, treat these mappings as doctrinal/prospective rather than currently enforceable duties.
2. For the benchmark, label these as doctrinal/prospective until 13 May 2027.

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